

Manisha Rana And Another vs Monika And Others on 13 December, 2024

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. MMO No.748/2024.

Date of Decision: 13.12.2024 Manisha Rana and anotherPetitioner Versus Monika and othersRespondents Coram The Hon'ble Mr. Justice Bipin Chander Negi, Judge. Whether approved for reporting?1 For the Petitioners: Mr. Ashok K. Tyagi, Advocate. For the Respondents: Mr. Sanjay Jaswal, Advocate, for respondent No.1.

Mr. Devender K. Sharma, Advocate, for respondent No.2.

Mr. Sanjeev K. Suri,
respondents No. 3 and 4.

Advocat

Bipin Chander Negi, Judge (oral).

Heard counsel for the parties. Perused the record.

2. Respondent No. 1, in the case at hand, is stated to have been married to proforma respondent No.2 i.e. Manuj Katoch. The marriage is stated to have been solemnized between the two on 11.11.2011 as per Hindu Rights and Custom. The relationships between the two is estranged.

3. For recovery of istridhan, a private complaint under Section 606 IPC was filed by respondent No.1 before the Judicial Magistrate, First Class, Kangra at Dharamshala. The same is appended alongwith the present petition as Annexure P10.

4. Prior to issuance of the summoning order in the case at hand, the complainant had been examined on 30.09.2016 alongwith maternal Whether reporters of Local Papers may be allowed to see the judgment? uncle Kashmir Singh Chandel and Rajeev Azad brother of respondent No.1. In sequel thereto, process was issued vide order dated 05.01.2017 placed on record at Page 89 of the paper book.

5. It is an admitted position that the present petitioners being the brother and sister of proforma respondent No.2 have not been served in the private criminal complainant pending adjudication before the concerned Judicial Magistrate, First Class, Kangra at Dharamshala.

6. The specific grievance of the petitioner in the case at hand are that petitioner No.1 (sister of proforma respondent No.2), who was married in the year 2000 with one Air Force Officer and since then she has been living with her family. Similarly, petitioner No.2, the brother of proforma respondent No.2 submits that he was married in the year 2009 and he living separately from her parents in Noida with his wife and children.

7. In the aforesaid backdrop, learned counsel appearing on behalf of the petitioner submits that from a bared reading of the complaint alongwith the statements recorded by the JMFC before issuing process, it is evident that the allegations made against the present petitioners i.e. sister and brother of proforma respondent No.2 are vague. Other than the aforesaid, it is submitted that a reading of the complaint, the ingredients of the offence i.e. Section 406 have not been made out insofar as the present petitioners are concerned.

8. Per contra, learned counsel appearing on behalf of the respondent submits that in the complaint at paras 3 and 4 items detailed therein were handed over to the accused persons.

9. The present complaint has been filed under Section 406. Section 406 deals with the punishment for criminal breach of trust. Criminal breach of trust has defined under Section 405 of the IPC. The same reads as follows:-

405. "Criminal breach of trust. Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or wilfully suffers any other person so to do, commits "criminal breach of trust."

10. From the perusal of the aforesaid section to making out an offence under the aforesaid provision of law, two ingredients need to be satisfied conjointly (a) entrustment and (b) misappropriation/conversion to use of the accused to the detriment of the person who had entrusted it.

11. Conspicuous by absence in the complaint and the statements recorded before issuing process in the case at hand is a mention of the date on which the articles mentioned in the complaint, if any were entrusted to the present petitioners or even the date when they were demanded back and they were refused to be given back by the petitioners. Hence the ingredients of Section 406 are absent in the complaint.

12. The complaint in the case at hand is an example of a quest to abuse the criminal justice system with a motive to seek personal vengeance rather than seeking true justice. The apparent misuse of criminal proceedings in this case not only damages trust in our legal system but also sets a harmful precedent if not addressed.

13. In this respect, it would be appropriate to refer to (2009) 10 SCC 184 titled Neelu Chopra and another vs. Bharti. Relevant extract whereof is being reproduced hereinbelow:-

"9. In order to lodge a proper complaint, mere mention of the sections and the language of those sections is not the be all and end all of the matter. What is required to be brought to the notice of the court is the particulars of the offence committed by

each and every accused and the role played by each and every accused in committing of that offence.

10. When we see the complaint, the complaint is sadly vague. It does not show as to which accused has committed what offence and what is the exact role played by these appellants in the commission of offence. There could be said something against Rajesh, as the allegations are made against him more precisely but he is no more and has already expired. Under such circumstances, it would be an abuse of the process of law to allow the prosecution to continue against the aged parents of Rajesh, the present appellants herein, on the basis of a vague and general complaint which is silent about the precise acts of the appellants".

14. Under such circumstances, it would be an abuse of process to allow the prosecution to continue against the present petitioners i.e. sister and the brother of proforma respondent No.2 for the simple reason that the sister of proforma respondent No.2 i.e. petitioner No.1 was married in the year 2000 to an Army Officer and ever since then she has been living a happy married life with her family separately from her parents. Similarly, petitioner No.2 i.e. brother of proforma respondent No.2 & was married in the year 2009. He has a separate family and children. As a consequential whereof he resides separately from his parents.

15. Therefore, for the aforesaid reasons, compliant Annexure P10 insofar as it pertains to the petitioners is quashed, so also the pending application(s), if any.

(Bipin Chander Negi) Judge 13TH December, 2024 (tarun)